

Surname, Date of Birth, and City of Birth” (see note of March 3, 2023, page 1 and attachment 1 and page 2 of attachment 2 to the same).

2. The measures taken by the Region.

Following the notification of the data breach, the Region implemented several measures aimed at addressing the vulnerability. Specifically, the Region stated that “immediate actions were taken to secure the system, including the revision of the URL access protocols and the implementation of additional security measures to prevent unauthorized access.” Furthermore, the Region indicated that “staff training was conducted to raise awareness about data protection and the importance of maintaining the confidentiality of personal data.”

3. The assessment of the breach.

In light of the information provided by the Region, the Office conducted an assessment of the breach in accordance with Article 33 of the Regulation. The assessment concluded that the breach posed a risk to the rights and freedoms of the affected individuals, given the nature of the data involved and the unauthorized access that occurred. The Office determined that the Region was required to notify the affected individuals about the breach, as the risk was deemed significant.

4. Conclusion.

Based on the findings of the investigation and the assessment of the measures taken by the Region, the Garante for the Protection of Personal Data hereby issues the following order:

- The Region is required to notify the affected individuals of the data breach within 30 days from the date of this decision, providing them with all necessary information regarding the nature of the breach, the data involved, and the measures taken to mitigate the impact of the breach.
- The Region must submit a report to the Garante within 60 days from the date of this decision, detailing the actions taken to address the breach and the effectiveness of the measures implemented.

This decision is made in accordance with the powers conferred to the Garante by the applicable legislation and is aimed at ensuring the protection of personal data and the rights of individuals.

Rome, November 27, 2024

THE Garante for the Protection of Personal Data

Prof. Pasquale Stazione

President

Surname and date of birth (the three data are mandatory to finalize the search)” (see note of May 5, 2023, p. 3).

With reference to the measures in place at the time of the breach, the Region recalled the document attached to the notification drafted by the company Engineering Ingegneria Informatica S.P.A., designated as the data processing manager, with which the same company communicated the data breach to the Region. Among the technical and organizational measures adopted concerning the data processing subject to breach described in the aforementioned document, vulnerability assessment and penetration testing activities carried out periodically by an independent designated team are indicated (see notification of January 24, 2023).

In this regard, the Region also stated that “the technical authentication measures are all referred to the regional proxy (managed by Molise Dati) for SPID and CIE access. The Web APP accesses the proxy via a URL including an authentication token. The system receives in response a body with the personal data that, depending on the type of authentication, vary. The middleware performs checks in the Registry Office to verify whether the user is indeed a beneficiary of the Molise region. If not, the user is redirected to the system's authentication page. If so, upon access and role selection, the token is generated by the User Manager (software module for user management) in order to be authorized to use the API services for registry searches and documentation. [...] the following roles have been configured: 1. Doctor/Health Director; 2. General Practitioner/PLS; 3. Pharmacist; 4. Administrative

Operator; 5. Beneficiary; 6. Guardian, Informal giver, Parent. For each of these roles, the types of interactions that can be performed have been determined” (see note of March 3, 2023, pp. 2 and 3 of annex 2 to the same).

In particular, the Region specified that “following the analysis of the technical and functional requirements of the FSE in which the Molise Region, Molise Dati, Tim S.p.A., and Engineering S.p.A. participated (Annex 6 titled “FSE Regione Molise-Roles and permissions.pdf”), the system was designed and implemented from an IT perspective by Engineering S.p.A., which, therefore, represents the entity responsible for the design of the identification and authentication procedures (Identity Management) as well as the electronic authorization of beneficiaries for the consultation of documents present in the FSE and the measures to guarantee the confidentiality of the same documents” (see note of May 5, 2023, p. 2).

With reference to the measures adopted following the breach, the Region represented that “an analysis of the possible cause from which the report derived was conducted, and then an analysis of the logs of all application modules at all levels was performed, and subsequently, an analysis of the code was conducted to circumscribe the bug and resolve it definitively. The first measure adopted was to inhibit the possibility of accessing the page <https://fse.regione.molise.it/fseui/list> via direct browser call. The second measure adopted was to implement, through checks inserted in the source code, a control that allows verifying that the web page <https://fse.regione.molise.it/fseui/list> is not in any way visible and usable by users authenticated with the role “Beneficiary”” (see notification of January 24, 2023, section H, point 1).

As for the measures adopted to prevent similar breaches in the future, it was then stated that “we requested Molise Dati to conduct an analysis aimed at assessing any presence of similar errors in the software developed by Engineering S.p.A.” (see notification of January 24, 2023, section H, point 2). Regarding the communication of the breach to the affected parties, the Region represented that the severity of the potential impact for the affected parties was “medium” as “the security flaw was reported by the same subject who detected the possibility of access to unauthorized data. There is no evidence of intent to act prejudicially against the affected parties,” that the breach “is not likely to present a high risk to the rights and freedoms of natural persons” and that “it was deemed unnecessary to proceed with communication to the affected parties, not perceiving a high risk for their rights and freedoms. In particular, considering that the security flaw was reported by the same subject who had made the unauthorized access, it was not deduced, by the same, the intent to act prejudicially against the affected parties” (see notification of January 24, 2023, section G, point 3, and section L, point 1 and note of March 3, 2023, p. 2 in response to the information request of February 21, 2023).

Finally, the Region stated that “on May 11, 2021 [...] it signed, pursuant to Article 26 of EU Regulation 2016/679 (GDPR), an agreement of joint control in the processing of health data with the Regional Health Authority for Molise - ASReM” and that “this joint control agreement, in Article 2.3, provided that each joint controller could resort to external suppliers/subcontractors for the provision of any service related to the management of the activities referred to in the aforementioned agreement” (see note of March 3, 2023, p. 2 and note of May 5, 2023, annex 2).

Based on the above, with a note dated September 28, 2023 (prot. 133809), the Office notified a breach pursuant to Article 166, paragraph 5, of the Code to the Molise Region as it was found that the processing of data

The personal data in question was processed in a manner that does not comply with the principle of “integrity and confidentiality” (Article 5, paragraph 1, letter f) of the Regulation), failing to adopt appropriate technical and organizational measures to ensure a level of security adequate to the risk (Article 32 of the Regulation) and suitable, from the design phase of the processing carried out within the framework of the Electronic Health Record (FSE), to effectively implement the principles of data protection and to integrate the necessary safeguards into the processing in order to meet the requirements of the Regulation and protect the rights of the data subjects, in violation of Article 25 of the Regulation.

By note dated October 27, 2023, the Region submitted its defensive statements in which it represented, in particular:

1. that it had delegated "the technical implementation activity of the FSE to Molise Dati S.p.A., an in-house providing body of the Molise Region," which was designated "as the data processor regarding the performance of all activities detailed in the documents approved by Regional Council Resolution No. 571 of December 30, 2019, and No. 59 of February 7, 2020, concerning the contractual relationship between the Molise Region and Molise Dati in the field of health informatics." This appointment, in the documents, provides for:
 - i. "the obligation to implement the principles of privacy by design and privacy by default;
 - ii. the obligation to implement security measures adequate to the protection of personal data being processed, including the "...definition of appropriate technical and organizational solutions aimed at regulating logical access... authorization profiles defined based on the principle of 'Need to Know'" and "...the execution of activities aimed at identifying vulnerabilities in applications and technical infrastructures functional to the provision of the service and activation of appropriate mitigation plans";
 - iii. the possibility of resorting to any sub-processors, in compliance with certain formal and substantive requirements";
2. that "in executing the entrusted task, and noting the need to turn to a specialized technological partner, Molise Dati S.p.A. adhered to the SPC Cloud Framework Contract Lot 1 of Consip S.p.A., signing, on October 28, 2020, the executive contract No. 2000379980709001COE with a Temporary Association of Companies (R.T.I.) composed of TIM S.p.A., Enterprise Services Italia S.r.l., Poste Italiane S.p.A., Postecom S.p.A., and Postel S.p.A.";
3. that "the contract signed with the aforementioned R.T.I. concerned the provision of IaaS cloud services, PaaS, and cloud enabling services for the migration of the original web app of the FSE from an 'on-premises' environment to the SPC cloud, with simultaneous replatforming of the web app to adapt it to the new environment using cloud enabling services, and expressly provided that the execution of the services indicated in the specific specifications would be entrusted to Engineering Ingegneria Informatica S.p.A.";
4. that "TIM S.p.A. identified Engineering Ingegneria Informatica S.p.A. as the additional processor of the processing operations carried out for the purposes of implementing the FSE, following the stipulation, with the operator, of a framework agreement for the provision of cloud enabling services in subcontracting";
5. that "the agreement signed by the parties expressly provided for the designation of Engineering Ingegneria Informatica S.p.A. as (additional) processor 'in relation to the Framework Contract signed on July 20, 2016, between Telecom and CONSIP... and/or the Executive Contracts signed between Telecom and the various Beneficiary Administrations,' with the subcontractor's commitment to '...observe the conditions/instructions set forth below and in the aforementioned letter' (cf. Article 21 of doc. E)";
6. that "Engineering Ingegneria Informatica S.p.A. was therefore the entity responsible for the design and technical realization of the IT system used for managing the electronic health record, including the design of identification and authentication procedures (Identity Management) as well as the electronic authorization of patients for the consultation of documents present in the FSE and the measures to guarantee the confidentiality of those documents";
7. that "simultaneously with the signing of the service contract, Molise Dati S.p.A. and TIM S.p.A. signed the act of 'appointment as data processor' attached to it, in which, for what is relevant here, the scope of processing was defined and the obligation of the supplier to (...) 'adopt all technical and organizational measures that meet the requirements of the EU Regulation in order to ensure an adequate level of security for the processing' was established";
8. that "with respect to the operations of processing personal data subject to the violation, therefore: (i) the Molise Region assumed the role of (co)controller of the processing; (ii) Molise Dati S.p.A. assumed the role of data processor; (iii) TIM S.p.A. assumed the role of sub-processor, designated by Molise Dati S.p.A. by virtue of the specific power attributed by the designation act; (iv) Engineering Ingegneria

Informatica S.p.A. assumed the role of additional sub-processor, designated by TIM S.p.A. by virtue of the specific clause contained in the appointment act as data processor signed with Molise Dati S.p.A.”;

9. that "Molise Dati S.p.A. immediately initiated an investigation aimed at verifying the actual existence of the cybersecurity issue.

reported by the citizen, requesting the sub-responsible Engineering Ingegneria Informatica S.p.A. to carry out any appropriate investigation. Following the checks carried out, on January 21, 2023, Engineering Ingegneria Informatica S.p.A. sent to Molise Dati S.p.A. a document, called “report,” in which it was acknowledged the actual presence of the bug reported by the notifier. In particular, according to what was stated by the sub-responsible, “on the FSE Portal of the Molise Region, the user with the role of ‘Assisted’ was able, exploiting a vulnerability of the system through intentional manipulation of the URL, to conduct a search for the data of other citizens present in the Regional Registry of Molise. Specifically, by manipulating the URL from <https://fse.regione.molise.it/fseui/dashboard> to <https://fse.regione.molise.it/fseui/list>, the user was able to use the citizen search functionality and subsequently select it to access the functionality for consulting the personal data and the FSE of the citizen itself”;

that “Engineering Ingegneria Informatica S.p.A. also acknowledged having conducted an investigation into the causes of the breach and, once the bug was identified, having resolved it, carrying out the necessary interventions to prevent the possible recurrence of the security incident”;

that “The underlying vulnerability – which was only exploitable by those authenticated (and therefore identifiable and traceable) individuals who, aware of the destination URL, had intentionally carried out such manipulation – was caused by a coding error in the software attributable to the actions of the sub-responsible for processing, Engineering Ingegneria Informatica S.p.A.”;

that “by note dated January 23, 2023, Molise Dati S.p.A. reported to the Molise Region the breach of personal data, acknowledging that it had immediately carried out “a technical analysis in collaboration with Engineering S.p.A., in its capacity as Cloud Enabler of TIM S.p.A. in the FSE project,” having detected the actual existence of “... a security bug, which allowed a user with the role of ‘Assisted’ to conduct a search for the data of other citizens present on the FSE and to consult such data” and having taken steps to

correct this cybersecurity issue”;
that “in addition to the previous note, on January 24, 2023, Molise Dati S.p.A. sent to the Molise Region the document called “report” prepared by Engineering Ingegneria Informatica S.p.A. and the following day the General Director for Health of the Molise Region acknowledged to the President, ASREM, and Molise Dati S.p.A. that it had proceeded with the notification”;
that “the security incident that caused the loss of confidentiality of the data was made possible solely by a programming error committed by the sub-supplier Engineering Ingegneria Informatica S.p.A. during the execution of the operations entrusted to it, and that, despite the stated performance of constant verification (penetration tests and vulnerability assessments), it was unable to detect the specific cybersecurity vulnerability that was the subject of the subsequent report.”
In relation to what emerged from the Region's records, the Office has initiated a sanctioning procedure also against the companies Molise Dati S.p.A. and Engineering Ingegneria Informatica S.p.A. (notes dated February 5, 2024).
In particular, the involvement of the company Engineering Ingegneria Informatica S.p.A. was made considering what was represented by the aforementioned Region regarding the circumstance that “Engineering Ingegneria Informatica S.p.A. was, therefore, the responsible party for the

design and implementation, from a technical standpoint, of the information system used for the management of the electronic health record, including the design of the identification and authentication procedures (Identity Management) as well as the electronic authorization of the assisted individuals for the consultation of the documents present in the FSE and the measures to guarantee the confidentiality of the same documents”; at the request of Molise Dati S.p.A. “Engineering Ingegneria Informatica S.p.A. acknowledged having conducted an investigation into the causes of the breach and, once the bug was identified, having resolved it, carrying out the necessary interventions to prevent the possible recurrence of the security incident” and that according to what was stated in the records “the underlying vulnerability – which was only exploitable by those authenticated (and therefore identifiable and traceable) individuals who, aware of the destination URL, had intentionally carried out such manipulation – was caused by a coding error in the software attributable

to the actions of the sub-responsible for processing Engineering Ingegneria Informatica S.p.A.”

In light of these elements, it was noted that the processing of personal data in question was carried out by Engineering Ingegneria Informatica S.p.A. omitting to implement appropriate technical and organizational measures to ensure an adequate level of security relative to the risk, in violation of Article 32 of the Regulation.

Following access to the administrative documents held by the Office, by note dated June 13, 2024, the company Engineering Ingegneria Informatica S.p.A. submitted its defensive memoranda (following an extension of the deadlines granted by note dated May 14, 2024) and requested to be heard in a hearing that took place remotely on July 4, 2024. In the defensive memoranda and during the aforementioned hearing, it is

****State represented, in particular, that:****

“in 2018 TIM awarded Engineering a subcontract only for a part of the activities delegated to TIM by the contracting authority (Cloud enabling), among which the aspect of security verification on the software, understood as vulnerability assessment and penetration testing, is not included. The Company could have performed checks related to the vulnerability of the operating system if this had been requested in the subcontract and if it had been granted the necessary authorizations. It is noted that, subsequent to the event on which the Guarantor intervened, TIM contracted other services and highlighted in the contractual documents that the aforementioned security activities (vulnerability assessment and penetration testing) are not included under the Company’s responsibilities” (see hearing minutes and documents on file, pp. 10 and 11); it is necessary to recall “the responsibilities of both the Region and TIM, which decided what to delegate to other subjects having a global view of the processing”; “the verification of the system’s vulnerability - in operational mode - would have required the Company to acquire a precise authorization in this regard from the data controller”; “the cyber incident occurred by a subject already authenticated who should have known the specific URL of the dashboard available to general practitioners that allowed searching by name, surname, and date of birth of another user”; “for the purpose of identifying the enforceable measures arising from Article 32 of the Regulation, one of the main criteria to consider is the context of the processing, which varies in relation to the role held in the contractual chain. The subject at the head of the chain has the overall view and knows the division of activities that it has decided to delegate. This aspect is inevitably not within the knowledge of the last subject downstream of the contractual chain, in this case, the Company. This imposes a different and greater accountability on the data controller who, in the specific case, decided the division of tasks.”

****2. Outcome of the investigative activity.****

Taking note of what is represented in the documentation on file and in the defense memoranda, it is observed that:

pursuant to the Regulation, “health-related data” are considered personal data concerning the physical or mental health of a natural person, including the provision of health care services, which reveal information related to their health status (Article 4, paragraph 1, no. 15, of the Regulation). Recital no. 35 of the Regulation further specifies that health-related data “include information about the natural person collected during their registration to receive health care services”; “a number, symbol, or specific element assigned to a natural person to identify them uniquely for health purposes”; the Regulation provides that personal data must be “processed in a manner that ensures adequate security (...) including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage (‘integrity and confidentiality’)” (Article 5, paragraph 1, letter f) of the Regulation). In this regard, Article 32 of the Regulation, concerning the security of processing, establishes that “taking into account the state of the art and the costs of implementation, as well as the

nature, scope, context, and purposes of the processing, and the risk of varying likelihood and severity for the rights and freedoms of natural persons, the data controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk" (paragraph 1) and that "in assessing the appropriate level of security, particular consideration shall be given to the risks presented by the processing, which arise particularly from the destruction, loss, alteration, unauthorized disclosure, or accidental or unlawful access to personal data transmitted, stored, or otherwise processed" (paragraph 2);

also taking into account the purpose of the FSE and the nature of the personal data processed, which also belong to special categories, the processing carried out in the context examined requires the adoption of the highest security standards, in order not to compromise the confidentiality, integrity, and availability of the personal data of millions of data subjects. On this basis, the security obligations imposed by the Regulation require the adoption of rigorous technical and organizational measures, including, in addition to those expressly identified by Article 32, paragraph 1, letters a) to d), all those necessary to mitigate the risks presented by the processing;

from the examination of the information and documentation provided by the Region, it emerges that the FSE Portal of the Molise Region, made available at the address <https://fse.regione.molise.it>, due to a "vulnerability" allowed an authenticated user with the role of "assisted" "through intentional manipulation of the URL, to search for the data of other citizens present in the Regional Registry of Molise," in the absence of a verification of the authorization permissions granted to the user for access to such data;

according to what was indicated by the aforementioned Region "Engineering Ingegneria Informatica S.p.A. was therefore the subject responsible for the design and implementation, from a technical point of view, of the IT system used for managing the electronic health record, including the design of the procedures for

****Identification and Computer Authentication****

(Identity Management) as well as the computer authorization of the assisted individuals for the purpose of consulting the documents present in the Electronic Health Record (FSE) and the measures to guarantee the confidentiality of the same documents"; according to what was indicated by the Molise Region, at the request of Molise Dati S.p.A., "Engineering Ingegneria Informatica S.p.A. has acknowledged having conducted an investigation into the causes of the breach and, once the bug was identified, has taken steps to resolve it, implementing the necessary interventions to prevent the possible recurrence of the security incident" and that according to what was stated in the documents "the underlying vulnerability – which could only be exploited by those subjects who had authenticated themselves (and were therefore identifiable and traceable) and, knowing the destination URL, had intentionally carried out such manipulation – was caused by a coding error in the software attributable to the actions of the sub-processor Engineering Ingegneria Informatica S.p.A."; the processing of personal data in question was carried out by the company Engineering Ingegneria Informatica S.p.A. omitting to implement appropriate technical and organizational measures to ensure a level of security adequate to the risk, as also provided for by the appointment act as data processor, in violation of Article 32 of the Regulation. The company, in designing and developing, from a technical standpoint, the IT systems used in the context of the Electronic Health Record of the Molise Region, including the computer authentication and authorization systems, should have – within the scope of ordinary diligence duties – adopted adequate measures and verified their effectiveness by executing appropriate test cases, in order to limit user access to only the information concerning them (or that they were possibly authorized to process) and thus prevent third parties from being able to, after passing the computer authentication procedure, use functionalities to which they were not authorized simply by modifying some parameters present in the URL.

****3. Conclusions.****

In light of the evaluations mentioned above, taking into account the statements made by the data controller during the investigation – and considering that, unless the act constitutes a more serious offense, anyone, in a proceeding before the Guarantor, who falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the

powers of the Guarantor" – the elements provided by the data controller in the defensive memoranda do not allow for overcoming the observations notified by the Office with the initiation act of the procedure, nor do any of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply. For these reasons, the illegality of the processing of personal data carried out by the company Engineering Ingegneria Informatica S.p.A. is noted in the terms outlined in the reasoning, in violation of Article 32 of the Regulation. It is finally believed that the conditions of Article 17 of the Guarantor Regulation No. 1/2019 are met.

****4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).********

The violation of Article 32 of the Regulation entails the application of the administrative sanction provided for by Article 83, paragraph 4 of the Regulation. The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83 of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company Engineering Ingegneria Informatica S.p.A., the illegality of which has been established, in the terms outlined above. In light of the above, it is believed that the level of severity of the violation committed by the company Engineering Ingegneria Informatica S.p.A. is low (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60). With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account: the Authority became aware of the event following the notification of the breach made by the Molise Region; the processing in question involves data suitable for revealing information about health (personal and residence data, data related to the healthcare received (ASL of belonging, district of belonging, name of the general practitioner, any exemptions), health data deducible from documents and medical reports possibly present in the specific electronic health record (e.g., laboratory reports, specialist reports, etc.) of 7 subjects who were exposed to possible illegal access for about 45 days (from November 14 to December 30, 2022); the type of vulnerability detected was neither easily detectable nor easily exploitable, requiring intentional manipulation of the URL and prior knowledge of the destination URL

"<https://fse.regione.molise.it/fseui/list>"; however, the company Engineering Ingegneria Informatica S.p.A. should have - within the scope of ordinary diligence duties - adopted adequate measures and verified their effectiveness by executing appropriate test cases, in order to limit user access to only the information that concerned them (or that they were possibly authorized to process) and thus prevent third parties from being able to, after passing the computer authentication procedure, use functionalities to which they were not authorized simply by modifying some parameters present in the URL; the company Engineering Ingegneria Informatica S.p.A. demonstrated a high degree of cooperation by working to immediately introduce suitable measures to overcome the vulnerabilities highlighted above; the company Engineering Ingegneria Informatica S.p.A. has not been subject to any other sanctioning and corrective measures regarding the matter in question. In light of the above elements and the evaluations made, it is deemed appropriate, in this case, to apply to the company Engineering Ingegneria Informatica S.p.A. the administrative sanction of payment of an amount equal to euro 10,000.00 (ten thousand/00). In this context, it is also deemed that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed. ALL OF THE ABOVE, THE Garante

a) pursuant to articles 57, paragraph 1, letter a) and 83 of the Regulation, declares the unlawfulness of the processing of personal data carried out by the company Engineering Ingegneria Informatica S.p.A. with registered office at Piazzale dell'Agricoltura 24, 00144 Rome (VAT number: 05724831002 - Tax Code: 00967720285), for the violation of the principles of integrity and confidentiality (art. 32 of the

Regulation), as stated in the reasoning;

ORDERS

b) pursuant to art. 58, paragraph 2, letter i) of the Regulation, the aforementioned Company to pay the sum of euro 10,000.00 (ten thousand/00) as an administrative pecuniary sanction for violating art. 32 of the Regulation, as described above;

ENJOINS

c) the company Engineering Ingegneria Informatica S.p.A. to pay the aforementioned sum of euro 10,000.00 (ten thousand/00), according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of law no. 689/1981. It is noted that pursuant to art. 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term provided for the submission of the appeal as indicated below in art. 10, paragraph 3, of legislative decree no. 150 of September 1, 2011.

DISPOSES

d) pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of the injunction order on the Garante's website;

e) pursuant to art. 154 bis, paragraph 3 of the Code, orders the publication of this provision on the Garante's website;

f) pursuant to art. 17 of the Garante Regulation no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by art. 57, paragraph 1, letter u) of the Regulation.

Pursuant to art. 78 of the Regulation, articles 152 of the Code and 10 of legislative decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 27, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei